

April 21, 2011



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 13876
(SECOND REVISION)

EXPIRATION DATE: January 31, 2015
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(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: City of Kotzebue
Kotzebue, AK
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the City of Kotzebue to offer for transportation in commerce of certain batteries for disposal or remanufacture in non-DOT specification packagings exceeding the gross weight limitations by cargo aircraft only within the State of Alaska. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with offering for transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.159(c)(1) in that non-DOT specification packaging is not authorized for transportation by air, except as specified herein.
5. BASIS: This special permit is based on the application from the City of Kotzebue dated October 18, 2010 and additional information dated February 22, 2011, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Batteries, wet, filled with acid, <i>electric charge</i>	8	UN2794	III
Batteries, wet, filled with alkali, <i>electric charge</i>	8	UN2795	III

7. SAFETY CONTROL MEASURES:

a. PACKAGING: The electric storage batteries are placed in non-DOT specification, high density polyethylene, leak-proof boxes that will contain up to two layers of large (up to 125 lbs.) wet storage batteries.

b. The electric storage batteries must be protected against short circuits and banded between sheets of plywood. The high density polyethylene, leak-proof box must be capable of withstanding the shock normally incident to transportation. No more than 1,800 pounds may be placed in a single box. The box must be capable of withstanding, without damage, a superimposed weight equal to twice its own weight (including the batteries). Battery terminals may not be relied upon to support any part of the superimposed weight.

c. The outside of each high density polyethylene, leak-proof box authorized under this special permit must be plainly and durably marked "DOT-SP 13876".

8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous

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materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm
Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: mn